



File No.: EXP202209511

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claiming party) filed a complaint with the Spanish Agency for the Protection of Data on August 23, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the claimed party). The reasons for the complaint are as follows:

“has installed, without authorization from the Community of Owners in which he resides, surveillance cameras aimed at common areas of said Community, having installed signs indicating a surveillance area without information about the data controller and the address to which to address for the exercise of rights”—page no. 1—.

He provides images of the location of the cameras at the entrance door to the residence (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the claimed party on 14/09/22 and 10/10/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

Upon consulting the database of this Agency, it is noted that the attempt(s) to notify this body were returned by the Official Postal and Telegraph Service as “Absent during delivery.”

THIRD: On November 15, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claiming party was admitted for processing.

FOURTH: On January 17, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the claimed party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 and 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: Upon consulting the database of this body on April 19, 2023, it is noted that notification was carried out by the Official Postal and Telegraph Service on 30/01/23 and a second attempt at notification on 31/01/23, leaving an “notice” in the mailbox of the claimed party.

Furthermore, publication was made via B.O.E on 15/02/23 in accordance with Article 44 of Law 39/2015 (October 1) as the postal notification was unsuccessful.

SIXTH: On 20/02/23, a request for collaboration was made to the State Security Forces and Corps to go to the scene of the events, with no response having been received to date.

SEVENTH: On 27/04/23, a was issued, confirming the presence of a camera in a community area without an informative sign, which justifies the proposal for a sanction of €1500 (€1000 + €500) for the infringement of Articles 6 and 13 of the GDPR.

EIGHTH: On 26/05/23, publication was made in the B.O.E of the proposal associated with PS/00618/22 after the postal notification at the address associated with the investigated party (responsible) was unsuccessful.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 23/08/22, which conveys the following facts:

“has installed, without authorization from the Community of Owners in which he resides, surveillance cameras aimed at common areas of said Community, having installed signs indicating a surveillance area without information about the data controller and the address to which to address for the exercise

of rights”—page no. 1—.

Second. B.B.B. with NIF ***NIF.1 is established as the main responsible party.

Third. The presence of surveillance cameras installed in a community area without informing about the data controller or the purpose of the system is established.

Fourth. It is not established that the claimed party has informed the governing bodies of the Community of Owners, nor has he placed an informative sign indicating that it is a surveillance area.

LEGAL GROUNDS

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3/7

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complaint that has been referred to this Agency is examined, which communicates the presence of video surveillance cameras in common areas, affecting the rights of third parties without the authorization of the homeowners' association.

To install cameras in common areas, authorization from the homeowners' association of the property is required, which must be requested in the corresponding agenda item, and must be approved in accordance with the terms of the Horizontal Property Law (LPH).

Individuals are responsible for ensuring that the installed video surveillance systems comply with current legislation, and must be able to demonstrate such compliance to the competent Authority.

Cameras installed by individuals must be directed towards their private space, avoiding the capture of private areas of third parties without justified cause.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Security cameras installed in private spaces may not capture images of public spaces; the responsibility for the security of public spaces lies exclusively with the State Security Forces and Corps.

Likewise, in the case of fake cameras, they must be directed towards private areas, avoiding intimidation of neighboring individuals who are unaware of whether or not they process personal data.

Fake cameras may also affect the personal privacy of the complainant, such that it is the maintained criterion of this Agency that they limit their range of action (orientation) towards private areas, respecting the tranquility of the private life of the affected individual, who should not have to know the nature of the system, nor should they have to endure intimidation from it in their personal and/or domestic sphere.

It should be noted that there are less invasive measures for the protection of private property, such as alarm systems or indoor cameras, avoiding the use of such cameras in exterior areas that affect neighborly coexistence.

III

In accordance with the evidence provided in the present sanctioning procedure, it is considered that

the party complained against has proceeded to install a camera on the common wall affecting a common area, without the necessary backing for doing so as outlined.

The evidence provided allows for the verification of the irregularities described in the complaint, as well as the clear misorientation of the device that affects common areas and, consequently, the data of third parties without justified cause.

The known facts constitute an infringement, attributable to the party complained against, for violating the content of Article 6.1(e) of the GDPR.

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller (...).

Article 72.1(b) of the LOPDGDD (LO 3/2018) states, "In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year statute of limitations:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

IV

The complaint reflects the complainant's statement regarding the absence of information on the informative sign indicating the purpose of the "processing" or the responsible party for legal purposes.

"The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at a minimum, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

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5/7

A connection code or internet address to this information may also be included in the informational device" (*bold text belongs to this agency)—art. 22 section 4 of the LOPDGDD--.

The aforementioned facts imply an infringement of the content of Article 13 GDPR, due to the lack of informative sign(s) with an effective address to which one could direct inquiries or indicate, if applicable, the main responsible party for the data processing.

Article 13 GDPR "Information to be provided when personal data is obtained from the data subject"

1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the following information at the time of obtaining the data: a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72 section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall expire after three years" and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

V

Article 83.5 GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

b) the rights of data subjects under Articles 12 to 22 (...).

In this case, it is taken into account when motivating the sanction that it concerns an individual, although the facts must be classified as serious, as they disproportionately affect common areas and disregard the recommendations of the governing bodies of the Community of property owners, which justifies a sanction of €1500, for the infringement of Article 6 GDPR (€1000) and Article 13 of the

GDPR (€500), considering the conduct as gross negligence, with the sanction positioned at the lower end of the scale for this type of behavior.

VI

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6/7

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further sanctioning administrative procedure.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6.1 and another of Article 13 of the GDPR, classified under Article 83.5 letters a) and b) of the GDPR, a fine of €1500 (€1000 + €500).

SECOND: TO ORDER the respondent to, within 15 working days from the day following the notification of this act, proceed to:

- Remove the device(s) capturing images from the common area from its current location.
- Provide a photograph (date and time) of the before and after that proves the uninstallation of the system.

THIRD: TO NOTIFY this resolution to B.B.B.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXX-XX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the immediate working day thereafter, and if it is in

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7/7

The payment period will be from the 16th to the last day of each month, both inclusive, and the deadline for payment will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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